

26NNCP00128 26NNCP00128

County: los-angeles

Division: Civil Law and Motion

Department: 316

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Case Number: 26NNCP00128 Hearing Date: August 31, 2026 Dept: 316

BACKGROUND

This case is an appeal of
the Labor Commission's order, decision, or award.

On February 19, 2026, Appellant AHMC San
Gabriel Valley Medical Center LP filed a Notice of Appeal. Appellant is
appealing the Labor Commission's judgment and award entered in favor of
Respondent Nancy Batista.

On May 21, 2026, the Court issued a Minute
Order dismissing the appeal.

On May 29, 2026, Respondent filed a Motion
for Attorney's Fees.

On June 29, 2026, the Court entered
judgment in Respondent's favor.

On August 18, 2026, Appellant filed an
opposition.

On August 24, 2026, Respondent filed a
reply.

TENTATIVE RULING

Respondent's Motion for

Attorney's Fees GRANTED.

Respondent is awarded \$25,200
in attorney's fees.

LEGAL STANDARD

A prevailing
party is entitled to recover costs, including attorney's fees, as a
matter of right. (See Code Civ. Proc., § 1032, subds. (a)(4), (b); see
also id. at § 1033.5.) Furthermore, attorney's fees are
allowable as costs when authorized by contract, statute, or law. (See Code
Civ. Proc., § 1033.5, subd. (a)(10).)

If the party seeking review
by filing an appeal of a Labor Commissioner award is unsuccessful, "the court
shall determine the costs and reasonable attorney's fees incurred by the other
parties to the appeal, and assess that amount as a cost upon the party filing
the appeal. An employee is successful if the court awards an amount greater
than zero." (Labor Code, §98.2, subd. (c).)

DISCUSSION

I.

Reasonable

Attorney's Fees

"The determination of what
constitutes reasonable attorney fees is committed to the discretion of the
trial court. [Citation.] The experienced trial judge is the best
judge of the value of professional services rendered in his or her court."
(Rey v. Madera Unified School Dist. (2012) 203 Cal.App.4th 1223,
1240.)

a.

Hourly

Rate

The Court finds that
counsel Eugene Lee's hourly rate is reasonable.

“[I]n assessing a reasonable hourly rate, the trial court is allowed to consider the attorney’s skill as reflected in the quality of the work, as well as the attorney’s reputation and status.” (MBNA America Bank, N.A. v. Gorman (2006) 147 Cal.App.4th Supp. 1, 13.)

Here, Respondent’s counsel, Eugene Lee, has an hourly rate of \$900/hr. (See Lee Decl., ¶ 9.) Lee attended law school at the University of Michigan and is a duly barred attorney in the State of California and New York. Lee began his career at law and consulting firms in New York. Thereafter, Lee worked as in-house counsel for a Silicon Valley tech company and then as a legal consultant for a large Asian law firm. In 2004, Lee began his own employment firm here in California. (See Lee Decl., ¶ 17.)

Since beginning his own employment practice, Lee has secured large awards for his clients, both in state and federal court. (See Lee Decl., ¶ 14.) Lee has also handled multiple labor commissioner appeals and appeals before the California Court of Appeal. (See *ibid.*)

Given Lee’s academic background and legal experience, the Court believes his \$900 hourly rate is reasonable. (See MBNA America Bank, N.A. v. Gorman (2006) 147 Cal.App.4th Supp. 1, 13.)

b.
Hours

“In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 564.)

Here, Lee claims he spent 28 hours working on this matter over a span of 3 months. (See Lee Decl., Exh. 1.) In opposition, Appellant contends that Lee’s hours are inflated, not

reasonably necessary, and incorrectly calculated.

After analyzing Lee's hour

log, the Court finds the listed hours reasonable. Accordingly, the Court will award fees for 28 hours at the rate of \$900 per hour for a total fee award of \$25,200.

c.

Lodestar

Analysis

The Court will decline to utilize a lodestar multiplier.

The "lodestar figure may .

. . be adjusted [according to a multiplier enhancement] based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) Relevant multiplier factors include "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) "[T]he party seeking a fee enhancement bears the burden of proof." (Ibid.)

Here, Respondent is

requesting a 2.0 lodestar multiplier given the contingency nature of the case, preclusion of other employment, the skill displayed, and novelty/difficulty of questions involved. The Court is not convinced that a lodestar multiplier is appropriate here. Fees are awarded due to the appeal, not the entire underlying litigation. The appeal was flawed from the outset and while the Court recognizes counsel Lee's work and is prepared to award the full requested hours and rate for that work, the Court does not find a basis for a multiplier based on the above factors.

CONCLUSION;

For the foregoing reasons,

Respondent's Motion for Attorney's Fees GRANTED.

Respondent is awarded

\$25,200 in attorney's fees.